

25AVCV00599 25AVCV00599

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Case Number: 25AVCV00599 Hearing Date: August 18, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JEISY ARAGON, an individual; and JEISY ARAGON TERAN, an individual,

Plaintiffs,

v.

NISSAN NORTH AMERICA, INC., a

Delaware Corporation, and ANTELOPE

VALLEY NISSAN, INC., a California

Corporation d/b/a ANTELOPE VALLEY

VOLKSWAGEN, and DOES 1 through 10,

inclusive,

Defendants.

Case Number 25AVCV00599

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 18, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly action arising from Plaintiffs Jeisy Aragon and Jeisy Aragon Teran's (Plaintiffs) purchase of a vehicle manufactured by Defendant Nissan North America, Inc. (Nissan) and purchased from Antelope Valley Nissan, Inc. (AVN) (together Defendants). Defendants move for summary judgment.

On May 8, 2025, Plaintiffs filed a complaint against Defendants, asserting four causes of action for (1) violation of Song-Beverly Consumer Warranty Act (Song-Beverly Act) for breach of express warranty, (2) violation of Song-Beverly Act for breach of implied warranty, (3) violation of the Song-Beverly Act section 1793.2, and (4) negligent repair.

Specifically, Plaintiffs allege they purchased a 2024 Nissan Sentra (Vehicle) on May 25, 2024, which was warranted by Nissan. (Compl., ¶¶ 9-10.) Plaintiffs claim the Vehicle was delivered with serious defects and nonconformities to warranty and that other defects and nonconformities developed after delivery and within the applicable warranty period. (Compl., ¶¶ 11, 26.) Plaintiffs allege that they delivered the vehicle to an authorized repair facility, but Defendants were unable to conform the Vehicle to the warranty after a reasonable number of repair attempts and failed to issue a refund or replace the Vehicle in violation of the Song-Beverly Act. (Compl., ¶¶ 28-29.)

On May 6, 2026, Defendants filed the present motion for summary judgment, or in the alternative, summary adjudication.

On July 28, 2026, Plaintiffs filed an opposition.

On August 7, 2026, Defendant filed a reply.

II. Request for Judicial Notice

Defendants' Request for Judicial Notice – Defendants request that the Court take judicial notice of Plaintiff's complaint filed in the present case. The Court notes that the complaint does not need to be judicially noticed as it is part of the instant case file. As this request is unnecessary, Defendants' request is DENIED. The Court will consider the complaint and contents therein as necessary in ruling on this motion.

III. Legal Standard

Standard for Motion for Summary Judgment – Summary judgment is proper “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at §437c, subd. (p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff’s case. If a defendant chooses the latter option, he or she must present evidence “and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence.” (*Aguilar*, supra, 25 Cal.4th at 865-66.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (See Code Civ. Proc. § 437c, subd. (p)(2).) On a motion for summary judgment, the moving party’s supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*D’Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21.)

The court must grant a motion for summary judgment if, after all admissible evidence is considered, there is no triable issue as to any material fact. (See Code Civ. Proc. § 437c, subd. (c).) The court has no discretion to deny a summary judgment motion where the moving party has met their burden, the opposing party has failed to establish any triable issue of material fact exists, and the moving party is thus entitled to judgment as a matter of law. (*Krasley v. Superior Court* (1980) 101 Cal.App.3d 425 432.)

IV. Discussion

Application – Defendants move for summary judgment, or in the alternative, summary adjudication, as to each cause of action in Plaintiffs’ complaint pursuant to Code of Civil Procedure section 437c. (Motion, p. 2:1-22.)

The operative Complaint frames the scope of the issues which must be addressed in the summary judgment motion. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381-82.) The Complaint alleges, in relevant part, the following:

On May 25, 2024, Plaintiffs purchased a 2024 Nissan Sentra (Vehicle), at which time Nissan issued an express warranty and agreed to preserve or maintain the utility or performance of the Vehicle or provide compensation if there was a failure in utility or performance. (Compl., ¶¶ 9-10.) Plaintiffs received various warranties in connection with the purchase of the Vehicle, including a 3-year/36,000 mile express bumper to bumper warranty, a 5-year/60,000 mile powertrain warranty covering Vehicle components including the engine and transmission, and various emissions warranties. (Compl., ¶ 10.) Plaintiffs allege the Vehicle was delivered with serious defects and nonconformities to warranty, including emission, electrical, and steering system defects. (Compl., ¶ 11.) Plaintiffs first presented the Vehicle for repairs in October 2024 for an oil leak, with approximately 4,767 miles on the Vehicle. (Compl., ¶ 12.) In January 2025, Plaintiffs presented the Vehicle, reporting inoperative steering wheel buttons and difficulties connecting to external devices via Apple CarPlay and malfunctions of the infotainment system, with approximately 12,127 miles on the Vehicle. (Compl., ¶ 13.) Plaintiffs again presented the Vehicle in February 2025 reporting infotainment system malfunctions, with approximately 12,788 miles on the Vehicle. (Compl., ¶ 14.)

a. First Cause of Action for Breach of Express Warranty

“A defendant moving for summary judgment has the initial burden of showing, with respect to each cause of action set forth in the complaint, the cause of action is without merit. A defendant meets that burden by showing one or more elements of the cause of action cannot be established, or there is a complete defense thereto.” (*Leyva v. Garcia* (2018) 20 Cal. App. 5th

1095, 1101.)

A plaintiff pursuing breach of express warranty under the Song-Beverly Act must prove: “(1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.)

Defendants argue that summary judgment should be granted as to the first cause of action because Plaintiffs cannot meet the threshold of establishing a reasonable number of repair attempts. (Motion, p. 8:2-4.) Defense counsel Moore declares that Plaintiffs presented the Vehicle for repair three times: (1) on October 21, 2024 with 4,767 miles for an oil leak, resulting in the replacement of the rear main seal, (2) on January 28, 2025 with 12,137 miles for the steering wheel skip button not working, the audio system not working, and Apple CarPlay not connecting, none of which could be duplicated by the technician and resulting in a software update, and (3) on February 10, 2025 with 12,788 miles for the audio screen going blank while in use, resulting in the replacement of the audio/visual unit. (Moore Decl., ¶ 6.) These facts are supported by Defendant Nissan’s National Service History. (Defendants’ Ex. A.) Moore asserts that none of the issues listed were presented more than once, there are no other additional issues repaired under Nissan’s warranty, and the Vehicle has not been presented to any authorized Nissan repair facility since February 10, 2025. (Moore Decl., ¶¶ 7-8.) These facts are undisputed. (Plaintiff’s Opp. to Sep. Statement, ¶¶ 3-6.)

Defendants argue that all of the nonconformities in the Vehicle were separate and distinct issues, and that all issues were resolved after only one service attempt. Defendants rely heavily on *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205 in support of the proposition that where multiple unrelated defects in a vehicle or nonconformities to warranty are resolved in one service attempt per issue, the requirement that more than one repair opportunity is necessary to state a claim is not met. (Motion, p. 8:12-22.)

In *Silvio*, the consumer presented his car for repair only once, and when the problem persisted, demanded a repurchase. (*Silvio*, supra, 109 Cal.App.4th at 1207.) Based on this factual scenario, the Court of Appeal held that the consumer had not stated a claim under Civil Code section 1793.2, subdivision (d), because that statute offers remedies where the car manufacturer is “unable to service or repair a new motor vehicle . . . to conform to the applicable express warranties after a reasonable number of attempts.” (Civ. Code, § 1793.2, subd. (d)(2).) Construing the statutory language referring to “a reasonable number of attempts,” the Court noted that “attempts” is plural, thus requiring that more than one repair opportunity was necessary to state a claim. (*Silvio*, supra, at 1208-09.)

Here, Defendants’ argument fails for two reasons. First, contrary to Defendants’ suggestion, the *Silvio* Court did not hold that there must be multiple repair opportunities for the same vehicle problem. The *Silvio* holding pertained to a plaintiff who sought repair one time for one issue, and on the recurrence of the issue, stated he did not want the vehicle repaired and instead wanted the manufacturer to repurchase the vehicle. (*Id* at 1207.) *Silvio* is silent as to whether multiple repair attempts for various nonconformities satisfy the “reasonable number of attempts” standard, and therefore does not support Defendants’ argument. Rather, “[t]he reasonableness of the number of repair attempts is a question of fact to be determined in light of the circumstances, but at a minimum there must be more than one opportunity to fix the nonconformity.” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal. App. 4th 785, 799.) Whether Defendants were able to verify, replicate, and repair the issue on presentation of the Vehicle is also inapposite. (See Reply, p. 3:5-9.) “Each occasion that an opportunity for repairs is provided counts as an attempt, even if no repairs are actually undertaken. (*Oregel v. American Isuzu Motors, Inc.* [(2006)] 90 Cal.App.4th [1094,] 1103 [all six occasions on which plaintiff presented vehicle to dealer to find and repair source of oil leak counted as repair attempts, even if only on one occasion were parts replaced].)” (*Ibid.*)

Second, whether the underlying defects in the Vehicle were related to one another or stemmed from a single systemic failing has not been established by any evidence provided by Defendants, and thus, *Silvio* is inapposite. This is particularly so in regard to the infotainment center and audio/visual component of the Vehicle, for which it appears from Defendants’ moving papers and evidence that Plaintiffs presented the Vehicle for repair twice. Defendant has offered no evidence that the defects presenting in the Vehicle in January 2025 and February 2025 are unrelated. Furthermore, the February 10, 2025 repair order provided by Defendants refutes the argument that the Vehicle was not presented more than once for any given

nonconformity, as the order states "THIS IS THE SECOND TIME SAME CONCERN." (Defendants' Ex. A, C.)

Therefore, Defendants have failed to establish that no triable issue of material fact exists, as questions exist as to (1) whether any or all of the repairs were related, (2) whether the Vehicle was presented on more than one occasion for the same nonconformity, and (3) whether the number of attempts to repair the Vehicle and conform it to warranty were reasonable.

Defendants' motion is DENIED as to the first cause of action.

b. Second Cause of Action for Breach of an Implied Warranty

"As defined in the Song-Beverly Consumer Warranty Act, 'an implied warranty of merchantability guarantees that 'consumer goods meet each of the following: [¶] (1) Pass without objection in the trade under the contract description. [¶] (2) Are fit for the ordinary purposes for which such goods are used. [¶] (3) Are adequately contained, packaged, and labeled. [¶] (4) Conform to the promises or affirmations of fact made on the container or label.'" (Isip v. Mercedes-Benz USA, LLC (2007) 155 Cal.App.4th 19, 26–27 (internal citations omitted); Civ. Code, § 1791.1, subd. (a).)

Defendants argue that this cause of action fails because Plaintiffs cannot prove that the Vehicle was not fit for the ordinary purposes for which the Vehicle is used. (Motion, p. 9:9-12.) Specifically, Defendants argue the implied warranty of merchantability provides only for a minimum level of quality, and given that there were only three warrantable repairs to the Vehicle, Plaintiffs cannot establish that the Vehicle had not fulfilled its ordinary use, which is to be driven by Plaintiffs. (Motion, p. 9:20-27.) Defendants also cite to CACI 3210 and American Suzuki Motor Corp. v. Superior Court (1995) 37 Cal.App.4th 1291, 1295-96 in support of the argument that the Vehicle's purpose is to be driven, and absent any impact on drivability, Plaintiffs' claim fails. (Motion, p. 9:18-19, 24.)

Defendants arguments were expressly rejected in Brand v. Hyundai Motor America (2014) 226 Cal.App.4th 1538. In Brand, the plaintiff purchased a vehicle which had a defective sunroof that would open and close spontaneously while plaintiff was driving, and the plaintiff brought suit for breach of the implied warranty of merchantability under the Song-Beverly Act. (Brand, supra, 226 Cal.App.4th at 541.) On review of the trial court's granting nonsuit in favor of defendant Hyundai, the Appellate Court was confronted by a similar argument from Hyundai that under American Suzuki, the "implied warranty of merchantability can be breached only if the vehicle manifests a defect that is so basic it renders the vehicle unfit for its ordinary purpose of providing transportation." (Brand, supra, 226 Cal.App.4th at 1546.) The Court rejected this argument, holding that "a merchantable vehicle under the statute requires more than the mere capability of 'just getting from point 'A' to point 'B.'"" (Ibid.) In distinguishing America Suzuki, the Court relied the holding in Isip v. Mercedes-Benz USA, LLC (2007) 155 Cal.App.4th 19, 25, wherein the Court noted "[t]he issue in American Suzuki was whether the trial court had properly certified for class treatment the plaintiffs' claims that vehicles they had purchased were prone to rolling over and therefore breached the implied warranty of merchantability. [Citation.] However, because the majority of the plaintiffs' vehicles had not rolled over, the claim was too speculative to warrant class certification. It was in the context of discussing cases in which no damage had been suffered that the court wrote that a vehicle violates the implied warranty of merchantability only if the vehicle is unfit for its ordinary purpose of providing transportation. [Citation.]." (Isip, supra, 155 Cal.App.4th at 25.)

The Court agrees with both the Brand and Isip Courts that the "suggestion [] that a vehicle 'necessarily does not violate the implied warranty of merchantability' if it can simply 'provide[] transportation from point A to point B'" is a misstatement of the law. (Brand, supra, 226 Cal.App.4th at 1546; Isip, supra, 155 Cal.App.4th at 27.)

Furthermore, the Court rejects Defendants' argument that Plaintiffs cannot establish breach of the implied warranty because there were "only three unrelated warrantable repairs to the Subject Vehicle, each of which were diagnosed and resolved." (Motion, p. 9:20-21.) Returning to Brand, the Hyundai defendant similarly argued, relying in Isip, that a plethora of defects is required before a seller may be found to violate the implied warranty of merchantability, and suggested that it was entitled to multiple repair attempts over an extended period of time before a buyer could rescind under the implied warranty. (Brand, supra, 226 Cal.App.4th at 1547.) Hyundai argued that unlike the subject vehicle in Isip, which suffered from leaking transmission, transmission hesitation, and brake problems, for which the manufacturer had six repair attempts, the "single, minor problem with Brand's sunroof, which was easily fixable, was insufficient to support a finding of liability on a breach of

implied warranty theory.” (Ibid.) The Court again rejected Hyundai’s argument, as Isip provides only one example of a breach of the implied warranty of merchantability, and in any case, consumer safety is an important consideration. (Ibid.) The Court reiterated that “the implied warranty ensures not simply a product ‘substantially free of defects,’ but in particular that ‘a vehicle ... is ‘in safe condition’ [Citation]; see *Carlson v. General Motors Corp.* (4th Cir. 1989) 883 F.2d 287, 297 [a merchantable vehicle is “substantially free of defects” and “can provide safe, reliable transportation” (italics added)].” (Ibid.) The Court reasoned that a jury could reasonably infer a multitude of unsafe scenarios arising from a defective sunroof, including the driver becoming suddenly distracted, buffeted, or incapacitated due to the defect occurring while driving. (Ibid.)

The same is true here. That Defendants argue the defects were, relative to other Song-Beverly defect actions, minor and easily resolved, is insufficient to establish that the car did not breach the implied warranty of merchantability. As with the Brand sunroof defect, a jury here could find safety concerns resulting from intermittent failures of the infotainment and audio/visual component of the Vehicle, including spontaneous failure of the screen providing navigation directions, resulting in immediate distraction while driving. The Court cannot say that, under the standard for granting a motion for summary adjudication, there is no triable issue of material fact for the jury to consider.

Therefore, Defendants’ motion is DENIED as to the second cause of action.

c. Third Cause of Action for Violation of California Civil Code Section 1793.2, subdivision (b)

Civil Code section 1793.2, subdivision (b) states that service and repair for a nonconformity to warranty in a vehicle must be commenced within a reasonable time by the manufacturer or its representative in California, and unless otherwise agreed in writing by the buyer, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.

California courts have not resolved whether Civil Code section 1793.2, subdivision (b) requires that a plaintiff show that a single repair took more than 30 days, or that more than 30 days of cumulative repair time has elapsed. (See, e.g., *Ramos v. Mercedes-Benz USA, LLC* (2020) 55 Cal.App.5th 220, 226, fn. 2 [“We have not been asked to decide whether the 30 days of failure to complete repairs must be 30 consecutive days.”].) Unpublished federal authority has interpreted the provision, in context, to mean that “under any reasonable reading of the statute, § 1793.2(b) requires only that [a defendant] complete any single repair attempt within 30 days.” (*Schick v. BMW of North America, LLC* (9th Cir. 2020) 801 Fed.Appx. 519, 521.) The Court finds this reading persuasive.

Defendants argue that this cause of action fails because Plaintiffs did not present the Vehicle for repairs for more than 30 days and Defendants did not fail to commence repairs within a reasonable time. (Motion, p. 10:1-4.) Defendants submit evidence that the Vehicle was (1) presented for the oil leak on October 21, 2024 and the repairs were completed on October 31, 2024, resulting in the Vehicle being down for ten days, (2) presented on January 28, 2025 for the ineffective steering wheel button and audio system and Apple CarPlay defects, the software update for which was completed on January 30, 2025, resulting in the Vehicle being down for two days, and (3) presented for the audio screen going blank while in use on February 10, 2025, the repairs for which were completed on February 18, 2025, resulting in the vehicle being down for eight days. (Motion, p. 10:8-19; COA 3, ¶¶ 3-6.) Thus, Defendants argue that the third cause of action fails as a matter of law because the car was down for only 20 days and repairs were commenced within a reasonable time. (Motion, p. 10:19-22.) Defendants offer as evidence Nissan’s National Service History, which establishes the dates of presentation of the Vehicle and the date of completion of service (Defendant’s Ex. A) and Plaintiff’s initial document production in this matter, including customer copies of the repair order details, apparently provided to Plaintiff, establishing the dates of presentation and resolution (Defendant’s Ex. C).

Here, Defendants have satisfied their initial burden of establishing that no triable issue of material fact exists. From the evidence presented, the Vehicle was presented three times, and all repairs were promptly attempted within one or two days, and each was completed in less than 30 days. Furthermore, even if the Court were to disagree with Schick and find the cumulative theory of the 30-day repair requirement the proper standard, the Vehicle was in repair status for a total of 20 days. Therefore, the burden shifts to Plaintiffs to establish a triable issue of material fact exists as to whether Defendants failed to commence repair efforts within a reasonable time or whether Defendants failed to repair the Vehicle within 30 days.

Plaintiffs argue that a triable issue of material fact exists as to whether the Vehicle was timely repaired “so as to conform the [Vehicle] to the applicable warranties” within 30 days, as the repair effort on January 28, 2025 was unsuccessful. (Opp., p. 7:16-21.) Plaintiffs assert that because the January 28, 2025 repair did not conform the Vehicle to warranty, evidenced by the subsequent February 10, 2025 presentation for repair, Defendants failed to meet their burden of establishing repair to conform the Vehicle to warranty within 30 days, and that viewing all evidence in the light most favorable to Plaintiffs, a reasonably trier of fact could conclude the January 28, 2025 repair did not successfully conform the Vehicle to warranty. (Opp., p. 8:6-12.)

The Court is not persuaded by Plaintiff’s argument. Here, Plaintiff has not disputed the dates of presentation, the dates the Vehicle was in service, or that the Vehicle was conformed to warranty no later than February 18, 2025, and has submitted no evidence to that effect. Plaintiffs also have not provided any evidence that the service efforts in January of 2025 were not made in an attempt to conform the Vehicle to warranty. On the contrary, the service reports reflect Plaintiffs’ complaints on presentation of the Vehicle, Defendants’ attempts to recreate and verify the issue, their inability to do so, and the repair efforts and software updates made to conform the Vehicle to warranty. Furthermore, even if the first repair effort was unsuccessful, the Vehicle was out of service for no longer than 10 days for repair of the specific nonconformity to the infotainment system, from January 28 to January 30, 2025 and from February 10 to February 18, 2025.

Plaintiffs’ own evidence submitted in opposition undermines their argument. Assuming, *arguendo*, the Court found Plaintiff’s argument that the January 28, 2025 repair was not reasonably performed so as to conform the Vehicle to warranty meritorious, there is no dispute here that the Vehicle was serviced and the nonconformity repaired by no later than February 18, 2025, a period of only 22 days from January 28, 2025, which still falls within the 30 day repair period provided by the statute. (Plaintiffs’ UMF, p. 7-8, ¶¶ 3-6; Kim Decl., Ex. A, B.) Furthermore, assuming, again for the sake of argument, the Court submitted to the cumulative 30-day repair period, the evidence presented by Plaintiff establishes that after the Vehicle was presented on October 21, 2024, the service and repairs were completed, and the Vehicle ready for pickup, on October 26, 2024, for a service period of only six days. (Kim Decl., Ex. A.) Thus, taking Plaintiff’s evidence that the Vehicle was out for service for six days from October 21 through 26, 2024, and accepting Plaintiff’s argument that the Vehicle was not brought to conformity for 22 days from January 28 through February 22, 2025, the Vehicle was only out for service for a total period of 28 days. (Kim Decl., Ex. A.) Therefore, even with all law and inferences in Plaintiff’s favor, there is no calculation of the repair period which would extend the nonconformities and repairs thereto beyond 30 days.

Finally, the Court rejects Plaintiffs’ argument that Defendants’ motion fails on the grounds that Defendants did not provide a comprehensive calculation of the service dates. (Opp., p. 8:13-21.) The dates and general timeline of service is undisputed by Plaintiffs, and as Plaintiffs themselves note, Defendants have provided repair orders and Nissan’s National Service History, along with documents produced by Plaintiffs which establish the dates of repair, the dates of technician work done on the Vehicle, invoice dates, and repair order closing dates. It is clear from the evidence presented that Defendants calculated the dates of service for each of the three service attempts from the date the Vehicle was first presented to the date when the service order was completed and closed.

Therefore, taking all evidence and inferences in Plaintiffs’ favor, Plaintiffs have failed to establish with competent evidence that a triable issue of material fact exists as to whether the Vehicle was brought into conformity with the applicable warranties within a reasonable time or whether the defects at issue were resolved within 30 days.

Defendants’ motion for summary adjudication is GRANTED as to the third cause of action.

d. Fourth Cause of Action for Negligent Repair Against AVN Only

A claim for negligence requires the following elements: (1) a legal duty of care owed to a plaintiff, (2) a breach of that duty, (3) causation, and (4) the damages to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Defendants argue the fourth cause of action fails because although AVN and Plaintiffs had a dealer-consumer relationship, Plaintiffs have provided no evidence that AVN performed any repairs inconsistent with industry standards, nor that any work AVN performed on the Vehicle caused damage. (Motion, p. 11:4-6.) Defendants argue that Plaintiffs’ initial disclosure of

document production includes a limited repair history, but identifies no repair records performed negligently by AVN, and that none of the documents provided reference negligent conduct, deviation from standards for repair, breach of a duty to exercise ordinary care and skill in the inspection, storage, preparation, and repair of the Vehicle, and Plaintiffs thus have failed to produce any evidence of breach of a duty or causation. (Motion, p. 11:6-15.)

Here, the Court finds that Defendants have not met their burden of establishing that no triable issue of material fact exists. Defendants first carry the burden of establishing with competent evidence that (1) AVN did not breach the duty owed and (2) any alleged breach was not the cause of damage suffered by Plaintiffs. Here, Defendants merely argue that Plaintiffs have not presented evidence of negligence, which is not sufficient on a motion for summary judgment under these circumstances. Defendants bear the burden of providing evidence, including evidence that the repairs were done in conformity with industry standards, that the repairs were done in conformity with the internal procedures for AVN, that the repair efforts were not negligently performed, or any other factual, evidentiary basis on which no trier of fact could find negligence and that the cause of action will fail as a matter of law. In the absence of such evidence, there exists room for questions as to whether AVN did, in fact, comply with industry standards and appropriately perform inspection and repair on the Vehicle.

Plaintiffs and Defendants have produced evidence establishing that the same issue was present in the Vehicle shortly after the first repair attempt, which raises a question of negligence in AVN's first repair effort. In light of the significant differences between the repair efforts following the January 28, 2025 presentation of the Vehicle and the efforts following the February 10, 2025 presentation of the Vehicle, there is a question as to whether AVN was negligent in inspecting the Vehicle and failing to repair the Vehicle sooner. With all inferences and evidence construed in a light most favorable to Plaintiff, the Court cannot find that there is no triable issue of material fact here.

Therefore, Defendants' motion is DENIED as to the fourth cause of action.

V. Conclusion

Defendants Nissan North America, Inc. and Antelope Valley Nissan, Inc.'s Motion for Summary Judgment is DENIED.

Defendants Nissan North America, Inc. and Antelope Valley Nissan, Inc.'s Motion for Summary Adjudication is GRANTED in part as to the third cause of action.

Defendants Nissan North America, Inc. and Antelope Valley Nissan, Inc.'s Motion for Summary Adjudication is DENIED in part as to the first, second, and fourth causes of action.